STANDARD TERMS & CONDITIONS

BSS/OSS Platform Modernization — Master Services Agreement Framework

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These Standard Terms and Conditions ('Terms') govern the relationship between NexWave Technologies Pvt. Ltd. ('Vendor') and the Client for the delivery of BSS/OSS platform modernization services. These Terms are incorporated by reference into the Master Services Agreement ('MSA') and all associated Statements of Work ('SOW'). In case of conflict between these Terms and an executed MSA, the MSA prevails.

PART I — DEFINITIONS & SCOPE

1. Definitions

1.1 Agreement

Means the executed MSA between the Vendor and Client, incorporating these Terms, all SOWs, SLA schedules, pricing exhibits, and data processing agreements.

1.2 Deliverable

Any software module, configuration, document, report, data migration artifact, or other output produced by the Vendor as specified in the applicable SOW.

1.3 Services

Collectively: implementation services, software deployment and configuration, data migration, training, hypercare support, and Application Managed Services (AMS) as defined in the relevant SOW.

1.4 TeleSphere Suite

NexWave's proprietary BSS/OSS software platform, including all modules (OCS, Billing Engine, CRM, OMS, NIM, Revenue Assurance, Fraud Management, Self-Care, SliceOrchestrator) and associated tooling.

1.5 Subscriber Data

All personal and non-personal data relating to the Client's subscribers, including MSISDN records, CDRs, billing history, consent records, and CRM data, processed by the Vendor on behalf of the Client.

1.6 Go-Live Date

The date on which a specific phase of the platform is accepted by the Client as production-ready, following successful completion of acceptance testing criteria defined in the SOW.

1.7 AMS Commencement Date

The date from which the Application Managed Services contract commences billing, as specified in the commercial exhibit — typically the Phase 3 Go-Live Date.

1.8 Change Request

Any modification to the agreed SOW scope, timeline, or commercial terms, formalized through the Change Control Process defined in Clause 7.

PART II — DELIVERY OBLIGATIONS

2. Vendor Delivery Obligations

2.1 Programme Team Commitment

The Vendor shall mobilize the programme team as specified in the SOW, including the named key personnel (Programme Director, Architecture Lead, and Domain Leads), from the contract effective date. Named key personnel shall not be replaced without the Client's prior written consent, which shall not be unreasonably withheld. In the event of an unavoidable replacement, the Vendor shall provide a candidate with equivalent or superior qualifications for Client approval within 15 business days.

2.2 Milestone Commitments

The Vendor commits to the milestone schedule defined in the applicable SOW. The Vendor shall notify the Client in writing at least 20 business days in advance if it becomes aware that a milestone will not be met. The parties shall negotiate in good faith on remediation plans. Unexcused delays beyond 30 days on critical path milestones shall trigger the delay credits defined in Schedule 2 (SLA & Service Credits).

2.3 Data Migration — Zero Revenue Leakage

For all subscriber data migration activities, the Vendor guarantees zero billing disruption and zero revenue leakage as defined in the Migration Acceptance Criteria (Appendix to SOW). Acceptance requires: (i) 100% subscriber record count reconciliation, (ii) CDR value reconciliation within 0.01% tolerance, and (iii) parallel run sign-off by Client's billing team. Any billing errors attributable to Vendor migration activities discovered within 90 days of Go-Live shall be remedied by the Vendor at no additional cost.

2.4 Performance Benchmarks

The platform shall meet or exceed the performance benchmarks specified in Schedule 1 (SLA Schedule) from the Go-Live Date. Performance benchmarks include OCS rating latency (<50ms P99 at 1.5M TPS), availability (99.999% for OCS/Charging), bill run completion (10M accounts in <6 hours), and all other metrics in Schedule 1. Failure to meet benchmarks triggers service credits per Schedule 2.

3. Client Obligations

The Client shall: (a) provide timely access to legacy system data, APIs, and documentation necessary for migration and integration; (b) make available Subject Matter Experts for workshops, testing, and UAT sign-off within agreed timelines; (c) process Change Requests within 10 business days; (d) process invoices within Net 30 days; (e) designate a named Programme Sponsor and Project Manager with authority to approve deliverables; and (f) provide access to Vi's data centers and network environments required for on-premises integration points.

PART III — INTELLECTUAL PROPERTY & CONFIDENTIALITY

4. Intellectual Property

4.1 Vendor IP

The TeleSphere BSS/OSS Suite (including all software, algorithms, methodologies, frameworks, tools, and know-how incorporated therein) is and shall remain the exclusive intellectual property of NexWave Technologies Pvt. Ltd. The Client is granted a non-exclusive, non-transferable, royalty-included license to use the TeleSphere Suite solely for its internal business operations as part of the contracted Services. This license does not include the right to: (i) sublicense, resell, or distribute the software; (ii) reverse engineer, decompile, or disassemble the software; or (iii) create derivative works based on the software.

4.2 Client IP & Subscriber Data

All Subscriber Data, Client configuration data, business rules, and proprietary processes provided by the Client remain the exclusive property of the Client. The Vendor shall use Subscriber Data solely for the purpose of performing the contracted Services. On termination or expiry of the Agreement, the Vendor shall return or destroy all Subscriber Data within 60 days, as directed by the Client, subject to any retention requirements under applicable law.

4.3 Bespoke Deliverables

Custom software, configurations, and integration adapters developed specifically for the Client as part of the agreed SOW ('Bespoke Deliverables') shall be owned jointly by both parties unless otherwise specified in the SOW. The Vendor retains the right to use the methodologies and know-how embodied in Bespoke Deliverables in future engagements, provided no Client-confidential information is disclosed.

5. Confidentiality

Both parties shall maintain strict confidentiality of the other's Confidential Information for the duration of the Agreement and for 3 years after termination. 'Confidential Information' includes: pricing, technical architecture, subscriber data,

business processes, and any information marked as confidential. Confidentiality obligations do not apply to information that: (i) is in the public domain at the time of disclosure; (ii) is independently developed by the receiving party; or (iii) is required to be disclosed by law or regulatory order. The Client may share the Vendor's commercial terms with its board and advisors under equivalent confidentiality obligations.

PART IV — COMMERCIAL TERMS & SLA

6. Payment Terms & Commercial Framework

6.1 Payment Schedule

Implementation payments are milestone-linked as specified in the Commercial Exhibit. AMS payments are monthly in arrears from the AMS Commencement Date. All amounts are exclusive of applicable GST (currently 18% on software and professional services). Invoices shall be raised by the Vendor within 5 business days of milestone achievement, accompanied by evidence of completion.

6.2 Payment Timelines

Client shall pay undisputed invoices within Net 30 days of receipt. For disputed invoices, the Client shall raise a written dispute within 15 business days with specific grounds. Both parties shall resolve disputes within 30 days of the dispute notice. Undisputed portions of disputed invoices shall be paid within the original Net 30 timeline.

6.3 Late Payment

Overdue amounts beyond 45 days shall accrue interest at SBI MCLR (1-year) + 2% per annum, calculated daily. Persistent non-payment beyond 90 days (with a 30-day cure notice) shall entitle the Vendor to suspend non-critical services upon written notice.

6.4 AMS Price Escalation

AMS fees shall escalate annually at the lower of: (a) 4% per year (contractually committed), or (b) the Wholesale Price Index (WPI) published by the Ministry of Commerce, Government of India. This cap is a contractual commitment and cannot be exceeded. Escalation applies from the second AMS year onward.

7. Change Control Process

All changes to agreed SOW scope, timeline, or commercial terms shall be governed by this Change Control Process: (i) Either party may raise a Change Request ('CR') in writing using the standard CR form; (ii) The Vendor shall provide a commercial and timeline impact assessment within 10 business days; (iii) The Client shall approve, reject, or counter-propose within 10 business days of receiving the impact assessment; (iv) No change shall be implemented without a written Change Order signed by both parties' authorized representatives; (v) CRs that reduce scope shall not entitle the Vendor to additional payment, but may reduce milestone-linked payments proportionally as agreed.

8. SLA, Service Credits & Liquidated Damages

8.1 SLA Regime

The parties acknowledge that service levels are material terms of the Agreement. The SLA schedule (Schedule 1) defines availability, latency, response, and resolution targets for each system component. SLA measurement periods, exclusions (scheduled maintenance, force majeure, Client-caused outages), and credit calculation methodologies are defined in Schedule 1.

8.2 Service Credits

System Component	SLA Target	Credit Trigger	Monthly Credit Rate
OCS / Charging Engine	99.999% availability	<99.999% in a calendar month	2% of monthly AMS fee per 0.001% shortfall

System Component	SLA Target	Credit Trigger	Monthly Credit Rate
CRM / Order Management	99.99% availability	<99.99% in a calendar month	1% of monthly AMS fee per 0.01% shortfall
Self-Care Portal	99.95% availability	<99.95% in a calendar month	0.5% of monthly AMS fee per 0.05% shortfall
OCS Rating Latency P99	<50ms at 1.5M TPS	>50ms P99 sustained for >30 min	1% of monthly AMS fee per incident
Critical Incident Response	<15 minutes	>15 minutes response time (P1)	0.5% of monthly AMS fee per breach
Total Service Credits Cap	N/A	N/A	Maximum 15% of monthly AMS fee in any month

8.3 Liquidated Damages — Implementation

For unexcused delays beyond 30 days on critical path milestones, the Client may apply liquidated damages ('LD') at the rate of 0.5% of the total implementation CapEx per week of delay, up to a maximum of 5% of total implementation CapEx. LDs are the Client's sole remedy for implementation delays and shall not be combined with service credits. LDs shall not apply where delays are caused by Client actions (including delayed approvals, access, or data provision) or force majeure events.

PART V — LIABILITY, TERMINATION & DISPUTES

9. Limitation of Liability

Neither party shall be liable for indirect, incidental, consequential, or punitive damages, including loss of revenue, profits, data, or business opportunity, even if advised of the possibility of such damages. The Vendor's total aggregate liability under the Agreement shall not exceed the greater of: (a) the total fees paid by the Client in the 12 months immediately preceding the event giving rise to the claim, or (b) INR 100 Crores. These limitations do not apply to: (i) death or personal injury caused by negligence; (ii) fraud or fraudulent misrepresentation; (iii) breaches of confidentiality or data protection obligations; or (iv) indemnification obligations under Clause 10.

10. Indemnification

The Vendor shall indemnify, defend, and hold harmless the Client against any third-party claims arising from: (a) infringement of third-party intellectual property rights by the TeleSphere Suite; (b) gross negligence or willful misconduct of Vendor personnel; (c) data breaches directly caused by Vendor's failure to maintain required security controls. The Client shall indemnify the Vendor against any claims arising from: (a) Client's misuse of the platform contrary to agreed specifications; (b) Client's failure to comply with applicable telecom regulations; or (c) Client-provided content or data that infringes third-party rights.

11. Termination

11.1 Termination for Cause

Either party may terminate the Agreement by written notice if the other party: (a) commits a material breach and fails to remedy it within 60 days of written notice; (b) becomes insolvent, enters liquidation, or is subject to a winding-up order; or (c) engages in corrupt practices or violates applicable anti-bribery laws. In case of Client termination for Vendor's cause, the Vendor shall refund all milestone payments for undelivered milestones within 90 days.

11.2 Termination for Convenience

The Client may terminate the AMS contract for convenience with 6 months' written notice after Year 2 of the AMS term. Termination for convenience during the implementation phase requires payment of: (a) all completed milestone payments; (b) reasonable mobilization costs for work-in-progress (not to exceed 20% of remaining implementation

CapEx); and (c) committed third-party costs that cannot be cancelled. The Vendor shall not be entitled to anticipated profits on unperformed work.

11.3 Exit Assistance

On termination or expiry, the Vendor shall provide exit assistance for up to 12 months, including: knowledge transfer to the Client's designated successor vendor, data extraction in standard formats (CSV/JSON), platform documentation, and API specifications. Exit assistance is charged at the T&M rates defined in the Commercial Exhibit. The Vendor's obligation to maintain the platform continues during the exit assistance period.

12. Dispute Resolution

Step 1 — Escalation: Both parties shall first attempt resolution through designated project representatives within 15 business days of a dispute notice. Step 2 — Senior Management: Unresolved disputes escalate to senior management (CXO level) for 30-day resolution attempt. Step 3 — Mediation: If unresolved, both parties shall engage a mutually agreed mediator (ICADR or DIAC) for structured mediation within 45 days. Step 4 — Arbitration: Unresolved disputes shall be submitted to binding arbitration under the Arbitration and Conciliation Act, 1996 (as amended). Seat of arbitration: Mumbai, Maharashtra. Language: English. Number of arbitrators: 1 (sole arbitrator by mutual agreement) or 3 (if parties cannot agree within 30 days). Arbitration award shall be final and binding.

Governing Law: This Agreement shall be governed by and construed in accordance with the laws of India. Jurisdiction for interim relief: Courts of competent jurisdiction at Mumbai, Maharashtra.

13. General Provisions

13.1 Force Majeure

Neither party is liable for delays caused by events beyond reasonable control including: acts of God, war, terrorism, pandemic, government actions, power grid failures, or acts of third-party internet infrastructure providers. The affected party shall notify the other within 5 business days. If a force majeure event persists for more than 90 consecutive days, either party may terminate the affected SOW without penalty.

13.2 Anti-Bribery & Corruption

Both parties warrant compliance with the Prevention of Corruption Act, 1988 (India), Foreign Corrupt Practices Act (USA), UK Bribery Act 2010, and all applicable anti-corruption laws. Either party may terminate immediately upon the other's confirmed violation of this warranty.

13.3 Non-Solicitation

During the Agreement term and for 12 months after termination, neither party shall solicit or hire the other's key personnel who were directly involved in this engagement, without the other's written consent. A fee of 3 months' gross salary of the poached employee shall be payable as liquidated damages.

13.4 Entire Agreement

These Terms, together with the executed MSA, all SOWs, pricing exhibits, and schedules, constitute the entire agreement and supersede all prior negotiations, representations, or agreements relating to the subject matter.

13.5 Amendments

No amendment to these Terms or the MSA is valid unless in writing and signed by authorized representatives of both parties.

13.6 Severability

If any provision is found unenforceable, the remaining provisions continue in full force. The parties shall negotiate a replacement provision that best achieves the intent of the severed clause.

13.7 Assignment

Neither party may assign its rights or obligations without the other's prior written consent, not to be unreasonably withheld. Either party may assign to an affiliate or as part of a bona fide corporate reorganization without consent, provided it notifies the other within 30 days and the assignee assumes all obligations.

SCHEDULE REFERENCE INDEX

Schedule 1: SLA Targets & Measurement Methodology | Schedule 2: Service Credit Calculation Matrix | Schedule 3: Data Processing Agreement (DPDP Act 2023) | Schedule 4: Commercial Exhibit & Pricing | Schedule 5: Change Request Form Template | Schedule 6: Exit Assistance Framework

Approved by: Legal & Compliance Department, NexWave Technologies Pvt. Ltd. | Version 3.1 | January 2026